

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Thomas Juliano	Team: Squad #12	CCRB Case #: 201700148	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 12/31/2016 11:25 PM	Location of Incident: Northwest corner of § 87(2)(b) ; 33rd Precinct stationhouse	18 Mo. SOL 6/30/2018	Precinct: 33
Date/Time CV Reported Fri, 01/06/2017 2:47 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 01/06/2017 2:47 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Anderson Ortiz	3319	949424	033 PCT
2. An officer			033 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Oscar Vargasvilla	23901	954394	033 PCT
2. POM Hector Figueroa	16620	955915	033 PCT

Officer(s)	Allegation	Investigator Recommendation
A. SGT Anderson Ortiz	Force: At the northwest corner of § 87(2)(b) in Manhattan, Sergeant Anderson Ortiz used physical force against § 87(2)(b)	§ 87(2)(b)
B. An officer	Abuse: At the northwest corner of § 87(2)(b) in Manhattan, an officer threatened § 87(2)(b) with the use of force.	§ 87(2)(b)
C. An officer	Abuse: At the 33rd Precinct stationhouse, an officer strip-searched § 87(2)(b)	§ 87(2)(b)

Case Summary

On January 6, 2017, § 87(2)(b) filed this complaint with the CCRB over the phone and scheduled an appointment for January 11, 2017.

On January 11, 2017, § 87(2)(b) missed his scheduled appointment and did not call ahead to reschedule or cancel. On January 13, 2017, § 87(2)(b) withdrew his complaint. He stated that he did not wish to follow through with the complaint. He stated that he was not coerced by anyone from the CCRB or the NYPD to withdraw his complaint and that he was doing so of his own free will. § 87(2)(b) agreed to return the withdrawal letter that was sent to him on January 13, 2017. The signed withdrawal letter will be added to the case file when it is received. On January 17, 2017, SI Lily Carayannis reviewed the withdrawal recording (See IA 11 at 01:00) and confirmed that it adhered to agency standards. § 87(2)(g)

Squad: 12

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date